

EX 152/2023

DHR and his learned counsel are absent. No representation.

The record reveals that the matter is of the year 2023 and cause notice to JDR by RPAD returned unserved as not claimed and the matter was posted for further steps by 15.04.2024 and on that day due to oversight without passing orders as to service of cause notice, attachment warrant of movables against JDR was ordered but it was not complied for want of PF and list of movables till 15.07.2024.

Subsequently, the attachment warrant of movables issued and re-issued against the JDR returned unexecuted as the DHR did not turn up vide office note dt:31.01.2025 and 24.06.2025.

Again the attachment warrant of movables was re-issued vide order dt:30.08.2025 but the said order is complied for want of deficit PF till 10.12.2025.

On 07.02.2026, the attachment warrant of movables re-issued again and it was returned unexecuted as the DHR did not turn up.

Therefore, prima facie it appeared that the DHR is not participating effectively in the proceedings to get executed the decree. Therefore, the present petition is dismissed for default.

